



Zimnat Lion Insurance Trading as Zimnat General Insurance

Directors and officers liability policy

DIRECTORS AND OFFICERS LIABILITY AND COMPANY REIMBURSEMENT INSURANCE POLICY

In consideration of and subject to the payment of the premium on or before due date and in reliance upon the statements made to the Insurer by the Proposal and its attachments and the material incorporated therein, all forming a part hereof, Zimnat Lion Insurance Trading as Zimnat General Insurance Limited, (the "Insurer"), agrees to indemnify the Insured as follows:-

1. INSURING AGREEMENT

SECTION 1: DIRECTORS AND OFFICERS INSURANCE

The Insurer shall pay the Loss of each and every Insured arising from any Claim or Claims first made against the Insured during the Policy Period or the Discovery Period (if applicable) and notified to the Insurer during the Policy Period or the Discovery Period (if applicable) for any Wrongful Act in their respective capacities as Directors or Officers of the Company, except if and to the extent that the Company has indemnified the Insured. The Insurer shall, in accordance with and subject to Clause 8, advance in respect of each and every Insured the Defence Costs of such Claim or Claims prior to the final resolution.

SECTION 2: COMPANY REIMBURSEMENT INSURANCE

The Insurer shall pay the Loss of the Company arising out of any Claim or Claims which are first made against any Insured during the Policy Period or the Discovery period (if applicable) and notified to the Insurer during the Policy Period or the Discovery Period (if applicable) for any Wrongful Act in their respective capacities as Directors or Officers of the Company, but only when and to the extent that the Company has indemnified the Insured for such Loss pursuant to law, common or statutory, or contract or the Memorandum and Articles of Association or similar Instruments of the Company which determines and defines such rights of indemnity. The Insurer shall, in accordance with and subject to Clause 8, advance Defence Costs of such Claim or Claims prior to their final resolution.

2. DEFINITIONS

- (a) "Claim" means (i) any suit or proceeding brought by any person or organization against the Insured for monetary damages or other relief, including non-pecuniary relief; (ii) any written demand from a person or organization that it is the intention of such person or organization to hold one more Insured responsible for the results of any specific Wrongful Act; (iii) any criminal prosecution brought against the Insured; or (iv) any administrative or regulatory proceeding or other official investigation into any specified Wrongful Act of the Insured.
- (b) The "Company" means the Named Company shown in Item 1 of the Schedule and any Subsidiary thereof.
- (c) "Defense Costs" means reasonable and necessary fees (including legal fees), costs and expenses incurred with the written consent of the Insurer resulting solely from the investigation, adjustment, defense and appeal of any Claim against the Insured, or representation of the Insured at any official investigation into the conduct of the Insured but shall not include salaries or other earnings of Directors and Officers or employees of the Company.
- (d) "Excluded Territory" shall mean those jurisdictions, including the political subdivisions thereof, shown in Item 7 of the Schedule. (USA and Canada)
- (e) "Insured" or "Director" or "Officer" means any natural person who was, now is, or shall be a Director or Officer of the Company in terms of the law under which, the Company is incorporated. Cover will automatically apply to any natural person who becomes a Director or Officer of the Company after the inception date of the policy.
- (f) "Loss" means damages, judgements, settlements and Defence Costs; however, Loss shall not include civil or criminal fines or penalties imposed by law, punitive or exemplary damages, the multiplied portion of multiplied damages, taxes any amount for which the Insured are not legally liable or matters which may be deemed uninsurable under the law pursuant to which this policy shall be constructed.
- (g) "Policy Period" means the period of time from the inception date to the expiration date shown in Item 2 of the Schedule.
- (h) "Proposal" means any Proposal, its attachments and the material incorporated there in or other application for, or closing or other

instructions relating to, this policy of insurance.

- (i) “Subsidiary” means a company of which the Named Company owns on or before the inception date of the Policy Period more than 50% of the issued and outstanding voting share capital either directly or indirectly through one or more of its Subsidiaries.
- (j) “Wrongful Act” means any actual or alleged breach of duty, breach of trust, neglect, error, misstatement, misrepresentation, misleading statement, omission, breach of warranty of authority or other act by the Directors and Officers of the Company solely in their respective capacities as such, but not in their capacity as Director or Officer of an entity other than the Company or any act or omission claimed against them solely by reason of their status as Directors and Officers of the Company. Same, related, continuous or repeated Wrongful Acts shall constitute a single Wrongful, Act.

3. EXTENSIONS

- (a) Subject otherwise to the terms hereof, in the event of the death, legal incompetence, insolvency or bankruptcy of any Insured, the policy shall cover Loss arising from any claims made against the estate, heirs or legal representatives of such Insured for any Wrongful Act of such Insured.
- (b) Subject otherwise to the terms hereof, this policy shall cover Loss arising from a Claim or Claims made against the lawful spouse (whether status is derived by reason of statutory law, common law, or otherwise of any applicable jurisdiction in the world) of any individual Director or Officer for a Claim or Claims arising solely out of his or her status as the spouse of an individual Director or Officer, including a Claim that seeks damages recoverable from marital community property, property jointly held by the individual Director or Officer and the spouse, or transferred from the individual Director or Officer to the spouse; provided, however, that this extension shall not afford coverage for a Claim or Claims for any Wrongful Act of the spouse, but shall apply only to a claim or Claims arising out of any actual or alleged Wrongful Acts of an individual Director or Officer, subject to the policy’s terms, conditions and exclusions.

4. EXCLUSIONS

The Insurer shall not be liable to make any payment for Loss in connection with any Claim or Claims made against the Insured:

- (a) arising out of, based upon or attributable to the gaining in fact of any personal profit or advantage to which the Insured was not legally entitled;
- (b) arising out of, based upon or attributable to profits in fact made from the purchase or sale by the Insured or shares of the Company using non-public information in a manner held to have been illegal; (Insider trading for example)
- (c) arising out of, based upon or attributable to the committing in fact of any criminal or deliberate fraudulent act;

(For the purpose of determining the applicability of exclusions 4(a) through to 4(c) the Wrongful Acts of any Insured shall not be imputed to any other Insured. Furthermore those exclusions only Apply if a judgement or other final adjudication adverse to the Insured establishes that the Excluded conduct did occur.)

- (d) alleging, arising out of, based upon or attributed to the facts alleged, or to the same, related, continuous, or repeated Wrongful Acts alleged or contained in any Claim which has been reported, or in any circumstances of which notice has been given under any policy of which this policy is a renewal or replacement or which it may succeed in time;
- (e) alleging, arising out of, based upon or attributed to any pending or prior litigation at the Continuity Date set forth in Item 8 of the Schedule or alleging or deriving from the same or essentially the same facts as alleged in such pending or prior litigation.
- (f) which are brought by any Insured or the Company or the Parent Company.

or which are brought by any shareholder of the Company or of the Parent Company, whether directly or derivatively, unless such Claim is instigated and continued totally independent of, and totally without the solicitation of, or assistance of, or active participation of, or intervention of any Insured or the Company or the Parent Company;

or which is brought by or on behalf of, whether directly or derivatively any individual or entity that owns or controls (whether beneficially, directly or indirectly) 10% or more of the issue and outstanding voting share capital of the Company;

Provided however, this exclusion shall not apply to wrongful termination of employment Claims brought by a former employee

other than a former employee who is or was a Director of the Company.

(g) alleging, arising out of, based upon, attributable, to, or in any way involving, directly or indirectly;

(1) the actual, alleged or threatened seepage, discharge, dispersal, release or escape of pollutants; or

(2) any direction or request to test for, monitor, clean up, remove, contain, treat, detoxify or neutralise pollutants, nuclear material or nuclear waste, or

(3) environmental impairment including, but not limited to claims alleging damage to the Company or its shareholders.

Pollutants include (but are not limited to) any solid, liquid, gaseous or thermal irritant or Contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste.

Waste includes (but is not limited to) material to be recycled, reconditioned or reclaimed,

(h) in a capacity as trustee, fiduciary under law (statutory or non-statutory including common law) or administrator of any pension, profit sharing or employee benefit program,

(i) for bodily injury, sickness, disease, death or emotional distress, of any person, or damage to or destruction of any tangible property, including the loss of use thereof, or for defamation or injuria,

(j) as Directors or Officers of any Subsidiary for any Wrongful Act occurring at any time when such entity was not a Subsidiary,

(k) alleging, out of, based upon or attributable to the Company's or an Insured's performance of or failure to perform professional services for other for a fee, or any act, error, or omission relating thereto.

(l) for loss or losses in connection with any claim made against the Insured which is brought by or on behalf of the national Government of Zimbabwe or any representative or authority or institution thereof.

(m) for loss or losses in connection with any claim made against the Insured alleging, arising out of, based upon, or attributable to:

(i) the actual or intended private placement or the purchase or sale or offer or solicitation of an offer to purchase or sell any security whether as a primary or secondary offering. However, in the event of any private placement or public offering the *insurer* may consider removal of this exclusion but consideration of such removal is subject to receipt from the *company* of,

- (a) a written declaration signed and dated by the Chairman or Chief Executive Officer stating that the offering is not in contravention of the Articles of Association, Constitution, laws or bye-laws of the *company* and that after enquiry to the best of his knowledge and belief he is not aware of any circumstance which could give rise to a *claim* against any *insured* or the *company*,
- (b) a copy of all filings and/or documents which have been or are presented to any relevant authority and/or the existing and/or prospective shareholders or stockholders of the *company*,
- (c) such additional premium together with agreement to any revised terms, conditions and/or exclusions as may be required by the *insurer* or
- (ii) the violation of any of the provisions of the Zimbabwe Stock Exchange Act Chapter 24.18 of 1996, or regulations promulgated thereunder, or any similar or statutory law/regulation(s) or common law;

Including but not limited to actions brought by a governmental or regulatory or self regulatory entity or authority, or actions alleging damage to the company or its shareholders.

- (n) alleging, arising out of, based upon, or attributable to:
 - (i) Payments, commissions, gratuities, benefits or any other favors to or for the benefit of any full or part-time domestic or foreign government or armed services officials, agents, representatives, employees or any members of their family or any entity with which they are affiliated; or
 - (ii) Payments, commissions, gratuities, benefits or any other favors to or for the benefit of any full or part-time officials, directors, agents, partners, representatives, principal shareholders, or owners or employees, or "affiliates" (as that term is defined in Zimbabwe Stock Exchange Chapter 24.18 of 1996, including any officers, directors, agents, owners, partners, representatives, principal shareholders or employees of such affiliates) of any customers of the company or any members of their family or any entity with which they are affiliated; or
 - (iii) Political contributions, whether domestic or foreign.
- (n) alleging, arising out of, based upon, attributable to the ownership, management, maintenance, operation and/or control by the Company of any captive insurance company or entity including but not limited to any Claim(s) alleging the insolvency or bankruptcy of the Named Corporation as a result of such ownership, operation, management and control.

- (o) alleging, arising out of, based upon or attributable to any one or more of the following:
 - (i) any refusal to renew or cancellation of any policy of insurance, reinsurance, bonds or indemnity, including, but not limited to, annuities, endowments, pension contracts and risk management self-insurance programmes, pools or similar programmes (hereinafter collectively referred to as "Insurance Contract").
 - (ii) any failure or refusal to pay, or delay in the payment of, benefits due or alleged to have been due under any Insurance Contract.
 - (iii) any lack of good faith or fair dealing in the handling of any claim or obligation arising out of or under any Insurance Contract.
- (p) in or under the laws of Zimbabwe in respect of any legal liability arising out of, alleging or in any way involving, directly or indirectly the purchase, sale, participation, grant, commitment, restructure, termination, transfer, repossession or foreclosure of any loan, lease or extension of credit, or any failure to do any of the foregoing, or in the rendering of advice in connection with any loan, lease or extension of credit".
- (q) arising out of, based upon or attributable to or in any way involving, directly or indirectly, the actual or alleged failure to effect or maintain any insurance, reinsurance or bond.
- (r) It is hereby understood and agreed that in the event of a *claim* alleging that the price or consideration paid or proposed to be paid for the acquisition or completion of the acquisition of all or substantially all the ownership interest in or assets of an entity is inadequate, *loss* with respect to such *claim* shall not include any amount of any judgment or settlement representing the amount by which such price or consideration is effectively increased (including fees associated therewith); provided, however, that this exclusion shall not apply to *defence costs*.
- (s)
 - (i) commenced or maintained in an Excluded Territory, or
 - (ii) based upon or attributable to any alleged violation of the laws of an Excluded Territory, or
 - (iii) based upon or attributable to any alleged Wrongful Act

occurring in an Excluded Territory.

(t) arising out of, in whole or in part, directly or indirectly or resulting from or by:

1. *war*, any act of *war*, civil *war*, invasion, insurrection, revolution, use of military power or usurpation of government of military power; or
2. the intentional use of military force to intercept, prevent, or mitigate any known or suspected *terrorist act*; or
3. any *terrorist acts*.

It is further agreed that the terms *war* and *terrorist acts* are respectively defined as follows:

- a) *War* shall mean war, whether declared or not, or any warlike activities including use of military force by any sovereign nation to achieve economic, geographic, nationalistic, political, racial, religious or other ends;
- b) *Terrorist Act(s)* shall mean any actual or threatened use of force or violence directed at or causing damage, injury, harm or disruption, or commission of an act dangerous to human life or property, against any individual, property or government, with the stated or unstated objective of pursuing economic, ethnic, nationalistic, political, racial or religious interests, whether such interests are declared or not. Robberies or other criminal acts, primarily committed for personal gain and acts arising primarily from prior personal relationships between perpetrator(s) and victim(s) shall not be considered *terrorist acts*.

A *terrorist act* shall also include any act which is verified or recognized by the Zimbabwean Government as an act of terrorism.

- (u) It is hereby understood and agreed that the *insurer* shall not be liable to make any payment in connection with any *claim* arising out of, based upon or attributable to, or in any way involving any actual or alleged act of Money Laundering.

The burden of proving that any *claim* does not fall within this Money Laundering Exclusion shall be upon the Insured.

Solely for the purposes of this Exclusion, the following Definition applies:

“Money Laundering” means the actual or attempted conspiracy to commit or commission, aiding, abetting, counselling, procuring, or inciting of any act which is in breach of and/or constitutes an offence or offences under:

- (a) any money laundering legislation (or any provisions and/or rules or regulations made by any Regulatory Body or Authority thereunder) including any act which, if it occurred in a part of the United Kingdom, would be unlawful under Part 7 of the Proceeds of Crime Act 2002 (c. 29) et seq. and/or any act which, if it occurred in a part of the United States, would be unlawful under Racketeer Influenced and Corrupt Organisation Act, 18 United States Code 1961 et seq.; or
- (b) any legislation which implements or is designed to implement the European Council Directive 91/308/EEC on prevention of the use of the financial system for the purpose of money laundering, as amended (including Part 3 of the United Kingdom Terrorism Act 2000 (c. 11) et seq.), and/or any offence under the International Convention for the Suppression of the Financing of Terrorism.
- (v) It is hereby understood and agreed that the Insurer shall not be liable to make any payment for Loss in connection with any claim or claims made against the Insured, alleging, arising out of, based upon or attributable to **False Accounting**.

For the purposes of this policy **False Accounting** shall mean the creation, recording or concealment of financial results or transactions with the intention of giving, or which results in, a misleading or deceptive statement of the financial condition of the Insured.

Off balance sheet transactions shall not constitute **False Accounting** provided that:

- a) There shall have been full disclosure of such transactions to the Insurer, and
- b) The Insurer shall have acknowledged such transactions in writing, and
- c) The Insured shall agree to abide by any terms, conditions, exclusions or additional premiums required by the Insurer.

5. LIMIT OF LIABILITY

The limit of liability stated in Item 3 of the Schedule is the limit for the Insurer's liability for all Loss, under both Insuring Agreement Section 1 and Section 2 combined arising out of all Claims first made against the Insured and reported to the Insurer during the Policy Period and the Discovery

Period (if applicable), however, the limit of liability for the Discovery Period shall also be part of, and not in addition to the limit of liability for the Policy Period. It is hereby understood and agreed that the combined total aggregate limit of liability that the *insurer* shall be liable for all *loss*, arising out of all *claims* made against all *insureds* under all insurance covers combined involving both this policy and the Parent Company or Subsidiary Company policy or policies shall be **US\$.00**. It is further understood and agreed that this endorsement shall not be construed to increase the Limit Of Liability as shown in the Schedule. Further, any Claim which is made subsequent to the Policy Period or Discovery Period (if applicable) which pursuant to Clause 7(b) or (c) is considered made during the Policy Period or Discovery Period shall also be subject to the same aggregate limit of liability stated in Item 3 of the Schedule. Defense Costs are not payable by the Insurer in addition to the limit of liability. Defense Costs are part of Loss and as such are subject to the limit of liability for Loss. The Investigation Costs are only limited to a sub-limit of **US\$.00** per year.

6. RETENTION

The Insurer shall only be liable for the amount of loss arising from a Claim under Insuring Agreement Section 2 for which the Company has indemnified or is permitted or required to Indemnify the Insured, pursuant to law, common or statutory, or contract, or the Memorandum Articles of Association or similar instruments of the Company which determines and defines such Rights of indemnity arising from a Claim which is in excess of the retention amount stated in Item 4 of the Schedule, such retention amount to be borne by the Company and/or the Insured and Shall remain uninsured. A single retention amount shall apply to Loss arising from all Claims Alleging the same Wrongful Act or related or continuous or repeated Wrongful Acts.

7. NOTICE/CLAIM REPORTING PROVISIONS

Notice hereunder shall be given in writing as soon as practicable to the Insurer addressed to the Claims Manager at its Head Office address. If mailed, the date of mailing shall constitute The date that such notice was given and proof of mailing shall be sufficient proof of notice.

- a) The Company or the Insured shall, as a condition precedent to the obligations of the Insurer under this policy, give written notice to the Insurer during the Policy Period, or during the Discovery Period (if applicable), of any Claim made against the Insured.
- b) If, during the Policy Period or during the Discovery Period (if

applicable), written notice Of a Claim against the Insured has been given to the Insurer pursuant to clause 7 (a) above, then any Claim which is subsequently made against the Insured and reported to the Insurer alleging, arising out of, based upon or attributable to the facts alleged in the Claim of which such notice has been given or alleging any wrongful Act which is the same, related, continuous or repeated Wrongful Act alleged or contained in such Claim, shall be considered made against the Insured and reported to the Insurer at the time such notice of Claim was given.

- c) If, during the Policy Period or during the Discovery Period (if applicable), the Company or the Insured shall become aware of any circumstances which may reasonably be expected to give rise to a Claim being made against the Insured and shall give written notice to the Insurer of the circumstances and the reasons for anticipating such a Claim, with full particulars as to dates and persons involved, then any Claim which is subsequently made against the Insured and reported to the Insurer alleging, arising out of, based upon or attributable to such circumstances or alleging and Wrongful Act which is the same, related, continuous or repeated Wrongful Act alleged or contained in such circumstances, shall be considered made against the Insured and reported to the Insurer at the time of such notice of such circumstances was given.

8. DEFENCE COSTS, SETTLEMENTS, JUDGEMENTS (INCLUDING THE ADVANCEMENT OF DEFENCE COSTS)

Under both Insuring Agreement Section 1 and Section 2 of the policy, except as hereinafter stated, the Insurer shall advance, at the written request of the Insured, Defense Costs prior to the final resolution of a Claim. Such Advance payments by the Insurer shall be repaid to the Insurer by the Insureds or the Company severally according to their respective interests, in the event and to the extent that the Insureds or the Company shall not be entitled under the terms and conditions of this policy to payment of such Loss.

The Insurer does not, however, under this policy, assume any duty to defend. The Insureds shall defend and contest any Claim made against them. The Insured shall not admit or assume any liability, enter into any settlement agreement, consent to any judgement or incur any Defense Costs without the prior written consent of the Insurer. Only those settlements, consent to judgements and Defense Costs which have been consented to by the Insurer shall be recoverable as Loss under the terms of this policy. The Insurer's consent shall not be unreasonably withheld provided that the Insurer shall be entitled to effectively associate in the defense and the negotiations of any settlement of any Claim in order to reach a decision as to reasonableness.

The Insurer shall have the right to effectively associate with the Company and the Insured in the defence and settlement of any Claim that appears reasonably likely to involve the Insurer. The Insured shall defend and contest any such Claim. The Company and the Insured shall give the Insurer full co-operation and such information as it may reasonably require.

Effective association shall include, but not be limited to the right of the Insurer to specify the terms of a proposed settlement, but the Insurer shall not settle any Claim without the consent of the Insured or the Company. If, however the Insured or the company shall refuse to consent to settlement recommended by the Insurer and shall elect to contest or continue any legal proceedings in connection with such Claim, then the Insurer's liability for the Claim shall not exceed the amount by which the Claim could have been settled inclusive of Defence Costs incurred with their consent up to date of such refusal, and then only up to the Limit of Liability stated in Item 3 of the Schedule.

With respect to the Defence Costs and any joint settlement of any Claim made against the Company and the Insured, such Defence Costs and joint settlement having been consented to by the Insurer, the Company and the Insured and the Insurer agree to use their best efforts to determine a fair and proper allocation of the amount as between the Company and the Insured and the Insurer.

9. DISCOVERY CLAUSE

At the option of the Company and subject to payment of an additional premium of 100% of the Full Annual Premium of the current year and subject to all the terms, exceptions and conditions of this Policy the Insurer agrees to extend the period during which the Insured may report a Claim for a Period of 12 months (herein referred to as the Discovery Period) provided that:-

- (a) this option may only be exercised in the event that the Insurer cancels or refuses to renew this policy.
- (b) this option must be exercised by the Company in writing and the premium must be paid within ten (10) days of the effective date of cancellation or non-renewal.
- (c) once exercised the option cannot be cancelled by either the Company or Insurer. However, this clause and the rights contained herein shall not apply to any cancellation arising from non-payment

of premium.

- (d) the Company has not obtained directors and officers liability insurance.
- (e) the Insurer shall not be liable for Wrongful Acts which occurred after the end of the policy.
- (f) any such reported Claim shall be treated as if it had been reported on the last day of the Policy Period or the effective time of a Transaction described in Clause 11.
- (g) the total amount payable by the Insurer for a Claim reported during the Discovery Period shall not have the effect of increasing the limit of liability of the policy.

As used herein, "Full Annual Premium" means the annual premium in effect immediately prior to the end of the Policy.

Notwithstanding the above provision, the Insured shall be entitled to a ninety (90) day Discovery period at no additional premium in the event that the Insurer cancels or refuses to renew the policy. However, should the Insured give notice to elect the twelve (12) month Discovery Period, the ninety (90) day Discovery Period shall form part of and not be in addition to the twelve (12) month Discovery Period.

In the event of a Transaction, as defined in Clause 11, the Named Company shall have the right, within 30 days of the termination of this policy, to request an offer from the Insurer of a Discovery Period with respect to Wrongful Acts occurring prior to the effective time of the Transaction for a period of three years or for such longer or shorter period as the Named Company may request. The Insurer shall offer such Discovery Period pursuant to such terms, conditions and premium as the Insurer may reasonably decide.

In the event of a Transaction, the right to a Discovery Period shall not otherwise exist except as indicated in this paragraph.

The offer by the Insurer of renewal terms, conditions, limits of liability and/or premium different from those of the expiring policy shall not constitute a refusal to renew this policy.

10. CANCELLATION CLAUSE

This Policy may be cancelled by the Named Company at any time only by mailing written prior Notice to the Insurer or by surrender of this policy to the Insurer. This policy may also be Cancelled by or on behalf of the Insurer by delivering to the Named Company or by mailing to the Named Company, by registered, certified, or first class mail, at the Named Company's address Shown

in Item 1 of the Schedule, written notice stating when, not less than thirty (30) days. Thereafter, the cancellation shall be effective. The mailing of such notice as aforesaid shall be Sufficient proof of notice. The Policy Period terminates at the date and hour specified in such Notice, or at the date and time of surrender.

If this policy shall be cancelled by the Named Company or the Insurer, the Insurer shall retain a Pro rata proportion of the premium.

Payment or tender of any unearned premium by the Insurer shall not be a condition precedent to The effectiveness of cancellation, but such payment shall be made as soon as practicable.

If the period of limitation relating to the giving of notice is prohibited or made void by any law Controlling the construction thereof, such period shall be deemed to be amended so as to be equal To the minimum period of limitation permitted by such law.

11. POLICY CONVERSION SUBSEQUENT TO CERTAIN EVENTS

If during the Policy Period any of the following events occur and the Named Company gives the Insurer written notice of the Transaction as soon as practicable, but not later than 30 (thirty) days After the effective time of the Transaction, namely:

1. The Named Company shall consolidate or merge into, or sell all or substantially all of its Assets to, any other person or entity or group of persons and/or entities acting in concert; or
2. any person or entity, whether individually or together with any other person or persons, entity or entities shall acquire an amount of the issued and outstanding shares representing more than 50% of the voting power for the election of Directors of the Named Company, or acquires the voting rights of such an amount of such shares.
3. the Named Company is a public company and becomes a private company or is a private company and becomes a public company or the Named Company acquires or loses a listing on the stock exchange.

(any of the above events herein referred to as the "Transaction").

Then, this policy shall continue in full force and effect as to Wrongful Acts occurring prior to the effective time of the Transaction, but there shall be no coverage afforded by any provision of this Policy for any Wrongful Act occurring after the effective time of the Transaction. The Full Annual Premium of this policy shall be deemed to be earned at the effective time of the transaction and

the policy may not be cancelled after such effective time. The Named Company shall also have the right to an offer of a discovery Period described in Clause 7 of this policy.

12. SUBROGATION

In the event of any payment under this policy, the Insurers shall be subrogated to the extent of such payment to all Company's and the Insured's rights of recovery therefor, and the Company and the Insured shall execute all papers required and shall do everything that may be necessary to secure such rights including the execution of such documents necessary to enable the Insurer effectively to bring suit in the name of the Company and/or the Insured.

13. OTHER INSURANCE

Unless otherwise required by law, such insurance as is provided by this policy shall apply only as Excess over any other valid collective insurance.

14. NOTICE AND AUTHORITY

It is agreed that the Named Company shall act on behalf of its Subsidiaries and all Insureds with respect to the giving and receiving of notice of Claim, the payment of premiums that may become due under this Policy, the receipt and acceptance of any endorsements issued to form a part of this policy and the exercising or declining to exercise any rights to a Discovery Period.

15. ASSIGNMENT

This policy and any and all rights and obligations hereunder are not assignable by the Insured or the Company without the written consent of the Insurer.

16. ACTION AGAINST INSURER

No action shall lie against the Insurer unless as a condition precedent thereto, such action is brought in a court of competent jurisdiction in the Republic of Zimbabwe, which shall have exclusive jurisdiction. (High Court)

It is further, a condition precedent to any action against the Insurer that there shall have been full compliance with all of the terms of this policy, and the amount of the Insured's obligation to pay shall have been finally determined either by judgement against the Insured after actual trial or by written agreement of the Insured, the Claimant and the Insurer.

Any person or organisation or the legal representative thereof who was secured such judgement or written agreement shall thereafter be entitled to recover under this policy to the extent of the insurance afforded by this policy. No person or organisation shall have any right under this policy to join the Insurer as a party to any action against the Insured or the Company to determine the insured's liability, nor shall the Insurer be interpleaded or joined in any proceedings by the Insured or the Company or their legal representatives. Bankruptcy or insolvency of the Named Company or the Insured or of their estates shall not relieve the Insurer of any of its obligations hereunder.